

Calendar Line 3 through 5

Case Name: Debbie Thompson v. Select Portfolio Servicing et al.

Case No.: 25CV480696

This is an action by self-represented plaintiff Debbie Thompson (Plaintiff), challenging the foreclosure of property located at 18285 Constitution Avenue, Monte Sereno, California, 95030 (subject property). The original and still operative verified complaint in this lawsuit was filed in November 2025 against defendants Select Portfolio Servicing, Inc. (SPS), U.S. Bank (U.S. Bank), in its capacity as Successor Trustee to other entities, and Doe defendants. It alleges five causes of action: (1) declaratory relief; (2) wrongful foreclosure (Civ. Code, § 2924); (3) fraud; (4) quiet title; and (5) cancellation of instruments. There are no exhibits attached to the complaint.

At issue are three matters filed by defendants SPS and U.S. Bank (hereafter, Defendants): (1) a demurrer to the complaint; (2) a motion to strike portions of the complaint; and (3) a motion to have Plaintiff declared a vexatious litigant. Plaintiff filed a single opposition addressing all three matters. The court will sustain the demurrer without leave to amend, deny the motion to strike as moot, and grant the motion to declare Plaintiff a vexatious litigant.

REQUEST FOR JUDICIAL NOTICE

“Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307.) Evidence Code section 453, subdivision (b), requires a party seeking notice to “[furnish] the court with sufficient information to enable it to take judicial notice of the matter.”

Defendants request judicial notice of 36 documents, citing Evidence Code section 452, subdivisions (c), (d), and (h). The court has considered the request filed with Defendants’ moving papers on January 6, 2026, and has not considered the request filed on January 15. Evidence Code section 452, subdivision (h), does not apply to any of the submitted material. (*Gould v. Md. Sound Indus.* (1995) 31 Cal.App.4th 1137, 1145 [“Judicial notice under Evidence Code section 452, subdivision (h) is intended to cover facts which are not reasonably subject to dispute and are easily verified. These include, for example, facts which are widely accepted as established by experts and specialists in the natural, physical, and social sciences which can be verified by reference to treatises, encyclopedias, almanacs and the like or by persons learned in the subject matter.”].)

The court grants judicial notice of exhibits 1 through 18 (copies of recorded documents). (*Yanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924; Evid. Code, § 452, subd. (c).)

The court grants judicial notice of exhibits 19 through 36 (copies of court records). (Evid. Code, § 452, subd. (d).) Court orders may be judicially noticed as to their findings. Judicial notice of other court records is appropriate for the fact of their filing, but not as to the

truth of matters stated therein. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 [truth of contents of court records cannot be judicially noticed].)

The contents of court records can be considered regarding application of res judicata. “As a general rule factual findings in a judgment are not the proper subject of judicial notice. That does not end our inquiry. ‘Whether a factual finding is true is a different question than whether the truth of that factual finding may or may not be subsequently litigated a second time. The doctrines of res judicata and collateral estoppel will, when they apply, serve to bar relitigation of a factual dispute even in those instances where the factual dispute was erroneously decided in favor of a party who did not testify truthfully.’” [Citation.] In other words, even though a factual finding in a prior judicial decision may not establish the truth of that fact for purposes of judicial notice, the finding itself may be a proper subject of judicial notice if it has a res judicata or collateral estoppel effect in a subsequent action.’” (*Hawkins v. SunTrust Bank* (2016) 246 Cal.App.4th 1387, 1393, quoting *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 148.)

DEFENDANTS’ DEMURRER

Demurrer Legal Standard

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that “[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (See Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) [“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”].)

The court cannot consider extrinsic evidence when ruling on a demurrer or a motion to strike. That includes declarations. The court has considered the declaration from defense counsel in support of the demurrer only to the extent it discusses the meet and confer efforts required by statute. The court has not considered any portion of the declaration filed by Plaintiff in connection with the demurrer or motion to strike. The court has also not considered any of the exhibits attached to the opposition while considering the demurrer because those exhibits constitute extrinsic evidence. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.) The court has not considered Plaintiff’s objection to the reply papers because it was filed without leave of court.

Res Judicata Bars Plaintiff’s Action

Defendants demur to the entire complaint and each cause of action on several grounds: res judicata, lack of standing, and failure to state sufficient facts. (Notice of Demurer and Demurrer at pp. 2:12-3:27.)

A general demurrer lies where the facts alleged in the complaint or matters judicially noticed show that a plaintiff's claim is barred by res judicata (also called claim preclusion) or collateral estoppel (also called issue preclusion). (*Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 792.) Res judicata and collateral estoppel have different requirements. (*DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 823-824 (*DKN*).) Res judicata prevents relitigation of the same cause of action in a second suit between the same parties (or parties in privity with them). It arises if a second suit involves: (1) the same cause of action, (2) between the same parties (or parties in privity), (3) after a final judgment on the merits in the first suit. (*Id.* at p. 824.) Collateral estoppel bars relitigation of issues that were argued and decided in the first suit, not entire causes of action. (*Ibid.*) Collateral estoppel applies: (1) after final adjudication, (2) of an identical issue, (3) actually litigated and necessarily decided in the first suit, (4) asserted against one who was a party in the first suit or one in privity with that party. (*Id.* at p. 825.)

Where res judicata applies, it bars a party from splitting causes of action or relitigating the same primary right. A claim raised in a later lawsuit is based on the same cause of action as a prior lawsuit if they are premised on the same primary right. A plaintiff's primary right is the right to be free from a particular injury, regardless of the legal theory on which liability for the injury is based. (*Gillies v. JPMorgan Chase Bank, N.A.* (2017) 7 Cal.App.5th 907, 914 (*Gillies*).) In a similar factual context of a litigant who filed multiple unsuccessful lawsuits to prevent a foreclosure, the *Gillies* court observed: "It matters not that appellant has a new theory of wrongful foreclosure. It is the same primary right which appellant has always claimed." (*Ibid.*)

Plaintiff has previously litigated (on several occasions) the primary right that is the basis for all causes of action in the current complaint: the right to be free from foreclosure of the subject property. Plaintiff filed a lawsuit in this court attempting to prevent the foreclosure of the subject property in 2016, naming as defendants U.S. Bank and others (case No. 16CV299641, *Thompson v. JP Morgan Chase Bank, N.A., et al.*). (See ex. 20 to Defendants' RJN [copy of the complaint].) That lawsuit was removed to federal court and dismissed in 2017. The federal court (Judge Freeman) found that Plaintiff had defaulted on her loan in 2010, but that no foreclosure had yet taken place, and that "[r]egardless of the cause of action Thompson is attempting to assert in the complaint, the complaint fails as a matter of law because a preemptive suit to enjoin a foreclosure, such as the one here, is not permitted." (See ex. 21 to Defendants' RJN at p. 5:22-24.) The court found that "Defendants obtained the right to enforce the [deed of trust] when Chase acquired WaMu's assets and directed U.S. Bank, N.A., to act as a trustee." (*Id.* at p. 8:14-15.) The court further found that U.S. Bank "has the right to foreclose on the underlying property," and that Plaintiff admitted that "her loan has been in default since January 2010." (*Id.* at p. 11:6-8 & 21.) The complaint was dismissed with prejudice and without leave to amend.

Plaintiff brought a second lawsuit in this court in 2020 attempting to preemptively challenge the power to foreclose on the subject property (case No. 20CV363544, *Thompson v. WAMU Mortgage Pass Through Certificates Series 2006-AR9 Trust, et al.*). (See ex. 23 to Defendants' RJN.) That action was also removed to federal court. The federal court denied Plaintiff's motion for remand and granted the defendants' motion to dismiss the lawsuit without leave to amend. The court found that the lawsuit was barred by res judicata based on the outcome of the 2016 lawsuit. "The claims raised in the Complaint are the same as those in the 2016 lawsuit before Judge Freeman." (Ex. 25 to Defendants' RJN at p. 11:4-5.) The court